that could make political capital out of her release. But we need to take a closer look at the high court judgement in order to analyse how far it helped open up space for future democratic struggles for fair trial of accused in cases of terrorism.

Justice Pradeep Nandrajog's judgement raises many vital questions. The most important relates to the role of media trials. The judge has held that media trials do not vitiate the trial itself because, unlike with a lay jury, propaganda or adverse publicity does not influence professional judges. In this he seems to echo the Supreme Court judgement in the Zee News case. Therein, the defence lawyers for the Parliament accused had managed a stay from the Delhi High Court restraining the broadcasting of Zee TV's film *December 13*. Though the film claimed to be based on the charge sheet, it in fact made allegations against Geelani that went far beyond the prosecution case. The Supreme Court, however, vacated the stay on grounds that judges could not be influenced. It failed to appreciate how such films are responsible for creating a climate of fear and mistrust. Today, even post acquittal, Geelani cannot get a house on rent. His children find it hard to lead normal lives.

Though Justice Nandrajog was bound by the Supreme Court judgement on the question of what effect media trials have on judges, there was also the question of police organizing media conferences. The judge made observations against the practice of allowing the media to interview the accused persons when they are in police custody under orders of the court. But neither did he lay down any guidelines, nor did he pass any strictures against the policemen who organized the press conference and forced Afzal to incriminate himself in full view of the national media. The judge did not even reprimand the senior officers who denied—on oath—any knowledge of the press conference in the court.

The 392-page judgement contains many observations on the disturbing trends in police investigation. The judge asked whether there was a breach of statutory safeguards during investigation. If yes, what are the consequences thereof? After a detailed examination of the facts, the judge found that the 'prosecution stood discredited qua the time of arrest of the accused, S.A.R. Geelani.' He also found that the arrest memos had been forged. The police forged documents, lied on oath, failed to follow even basic rules of criminal procedure and violated the letter and spirit of the Indian constitution. Despite all this, the Delhi High Court failed to pass any strictures against the police officers of the Special Branch.